You can predict crime patterns, but not who will commit it, and AI will not help you

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A letter to the editor.

Dear Editor,

I want to tell you the story of how I came to reject one of the most influential ideas in contemporary criminal justice: AI driven predictive policing.

Years ago, before I joined academia, I worked in mental health and social care. During my time in public services, I learnt to use the HCR-20 risk assessment (the form used to assess the "risk" of violent re-offending that is used to determine if someone is safe enough to re-join society or if we should keep them in prison). I also conducted hundreds of DASH assessments; these are used to decide if the victim of domestic violence is "high" or "low" risk, and based on the score, resources are allocated or denied.

The tools were modest in their epistemology, usually simple checklists or some heuristics based on loose correlations. I was very young when I was using them, and I did not really understand their power. These simple checklists could determine whether someone lived or died the next day. I have learned that in a very hard way. One day, I was carrying out a routine DASH assessment with a victim of domestic abuse (let us call her Lisa). The checklist classified her as a standard risk: on paper, everything was fine, but I was worried about her. When I raised my concerns, I was told to relax. I had completed the assessment: if she was killed that day, the record would show that I had followed procedure. I was covered, and I guess I was the one who was safe that night. That day my world sort of flipped. I would spend my nights thinking about it all. How could a simple checklist carry that kind of authority? What exactly was it measuring? And on what grounds could it claim to say anything about what might happen next?

So I decided to investigate. I read books on risk, prediction, and philosophy of science. I trained in data, scientific reasoning, and machine learning. I even went off to do my PhD and ended up teaching on what risk actually means. So when I came across HART and COMPAS[1] I was ready to understand what was actually happening. HART and COMPAS are algorithmic risk assessment systems used in policing and criminal justice to "predict" future offending and recidivism.[2]

Because of Lisa, and what her case taught me, along with everything I have learned since, I could not share the excitement that seemed to be sweeping through the field. Around me, people held their breath, convinced a brave new world was coming. This was meant to be the breakthrough: risk assessment, finally powered by science and technology. It looked more precise, more advanced, more authoritative than the checklists we knew were limited.

[1]HART is a UK police risk classification system using machine learning; COMPAS is a US algorithm used to assess the likelihood of reoffending in courts and parole decisions.

[2]While HART has largely been discontinued, COMPAS is still used in parts of the US criminal justice system to assess the likelihood of future offending.

So I listened to the claims being made about these "groundbreaking" systems based on artificial intelligence. I read Nature papers,[3] random books, and articles announcing the big breakthroughs in risk that will make us all safer and happier. It felt like a neoliberal dream of population control: data driven, and wrapped in the language of science, no force required. What unfolded in front of me looked like Foucault's concept of productive power [Foucault, 1977] realised in its most complete form. And yet, beneath all of it, I could not shake the feeling that I was listening to a swan song.

I started asking a simple question: what does it actually mean to say someone is "high risk"?

Well, measurable risk is about likelihood. You assign a probability to an event, something happening again under conditions you understand. That works when you are dealing with systems that behave consistently: machines, materials, even large populations under stable conditions. But criminal justice is not that kind of system. People are not dice. Their decisions shift with context, pressure, chance, and circumstance. The conditions do not repeat, and the outcomes are not drawn from a stable distribution.

And yet, these tools speak as if they are.

What they actually do is rather simple. They take a person and compare them to others in a dataset. They look for patterns, who looks similar to whom, who reoffended in the past, and then place that person into a category. Not a probability, not a prediction. A category.

But somewhere along the way, that category gets relabelled. It becomes "risk." It becomes "likelihood." *It starts to sound like a statement about the future, rather than a sorting exercise based on the past.*

That shift is doing a lot of work, because once you call it risk, it starts to carry authority. Decisions can be justified, interventions can be delivered, resources can be allocated or withheld. No one has to say, "we do not really know."

These systems organise the world. They decide who is watched, who is detained, who is denied support. And because their outputs look scientific, those decisions appear neutral, inevitable, even when they are anything but.

Risk tools can reproduce bias because they learn from historical data shaped by unequal policing, social inequality, selective criminalisation, institutional practices, reporting patterns, and broader structural inequalities that determine who becomes visible to the criminal justice system in the first place. Consider two people who are very similar in behaviour, background, and circumstances. One lives in a heavily policed postcode and belongs to a group that has historically had more contact with the criminal justice system; the other does not. The model may flag the first person as "high risk" and the second as "low risk," even though neither is more likely to offend. This is because variables like postcode, race, and prior system contact act as proxies for institutional exposure, not for actual criminal propensity.

The analysis of over 7,000 cases in Broward County, Florida, revealed that Black defendants who did not reoffend were almost twice as likely to be labelled "high risk" by the COMPAS algorithm compared to their white counterparts. Specifically, 45% of Black defendants were incorrectly classified as high risk, while only 23% of white defendants experienced a similar misclassification. This disparity highlights algorithmic bias in the criminal justice system, raising ethical concerns about the fairness and transparency of risk assessments used in decision making processes [Angwin et al., 2016].

So, no, AI driven predictive policing does not predict individual crime. It classifies people, and then mislabels that classification as risk.

Epistemologically, actuarial risk assessment and the crystal ball rely on a similar underlying mechanism: both attempt to transform uncertainty about the future into knowable and actionable predictions in the present. *The difference lies less in the structure of prediction than in the authority through which it is legitimised.* While the crystal ball derives legitimacy from mysticism and divination, algorithmic risk assessment derives legitimacy from statistics, computation, and institutional claims to scientific objectivity. In both cases, opaque interpretive systems convert fragments of the present into narratives about future danger.

[3] See, for example, https://www.nature.com/articles/s41598-023-50274-2.

If we are serious about justice, we have to stop pretending these systems can do what they cannot. AI can detect patterns in past data, but it cannot predict who will commit a crime tomorrow.

Treating classification as prediction does not make us safer; it gives us the illusion of control while redistributing harm. It allows institutions to act with confidence where none is warranted, to justify intervention without explanation, and to obscure responsibility behind numbers.

The danger is not that these systems fail, but that they succeed on their own terms: producing decisions that look scientific, feel objective, and carry real consequences, while remaining fundamentally detached from the realities they claim to govern. *If we continue down this path, we are not predicting the future, we are manufacturing the future that we do not want to happen.*

References

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